SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Crl.) No. 76 of 2016 (YEAR: 2018)

CORAM: DIPAK MISRA, R.F. NARIMAN, A.M. KHANWILKAR, D.Y. CHANDRACHUD, INDU MALHOTRA

Navtej Singh Johar
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Indian Penal Code, 1860, Constitution of India
Sections:	Section 377 IPC, Article 14, Article 15, Article 19, Article 21

JUDICIAL HEADNOTE & SUMMARY

Unanimously read down Section 377 IPC to decriminalize consensual same-sex relations between adults, holding that discrimination based on sexual orientation violates constitutional guarantees.

RATIO DECIDENDI

The Court held that: Unanimously read down Section 377 IPC to decriminalize consensual same-sex relations between adults, holding that discrimination based on sexual orientation violates constitutional guarantees. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Navtej Singh Johar v. Union of India (Writ Petition (Crl.) No. 76 of 2016) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Penal Code, 1860, Constitution of India, particularly Section 377 IPC, Article 14, Article 15, Article 19, Article 21. Unanimously read down Section 377 IPC to decriminalize consensual same-sex relations between adults, holding that discrimination based on sexual orientation violates constitutional guarantees.

OPERATIVE ORDER

ORDER: Decided